



CHAPTER lxxx.

An Act to extend the compulsory limits of water supply of the burgh of Motherwell to confer further powers as to water supply to construct and maintain sewers and sewage purification works to acquire lands to borrow money and for other purposes. [31st July 1914.] A.D. 1914.

WHEREAS the provost magistrates and councillors of the burgh of Motherwell (hereinafter called "the Town Council") acting under the Burgh Police (Scotland) Acts 1892 to 1911 are the municipal local and public health authority within the burgh under those Acts and the Public Health (Scotland) Act 1897:

And whereas under the Motherwell Water (Additional Supply) Act 1900 (hereinafter referred to as "the Act of 1900") the Town Council introduced an abundant water supply capable of providing water to the burgh and sufficient for the supply of a population of eighty thousand persons:

And whereas by the Motherwell Burgh Extension and Sewage Purification Act 1908 (hereinafter referred to as "the Act of 1908") the boundaries of the burgh were extended to include the area therein described it is expedient that the water supply of such area should be provided by the Town Council from their water undertaking:

And whereas it is expedient that the burgh should be included within and form the limits of compulsory water supply of the Town Council and that the powers rights duties and functions of the county council of the county of Lanark and the district committee of the Middle Ward of the said county with regard to the supply of water and the levying of rates

[Ch. lxxx.] *Motherwell Water and Sewage* [4 & 5 GEO. 5.]
Purification Act, 1914.

A.D. 1914. assessments and charges in respect thereof in any part of the burgh should cease and determine :

And whereas it is expedient that the Town Council should be empowered to levy rates assessments and charges within the burgh and to borrow money on the security thereof :

And whereas in consequence of the large increase of the population and the extension of the industrial works within the burgh the existing facilities for the proper treatment and disposal of the sewage of the town are inadequate and it is expedient to make further provision for the more effectual treatment and disposal of the sewage thereof :

And whereas it is expedient for effecting the aforesaid sewage purposes that the Town Council should be authorised to construct and maintain sewers and other works and to purchase and acquire and hold use and apply lands for those purposes and for sewage purification :

And whereas it is expedient that the Town Council should be authorised to borrow money for the purposes of this Act and for the construction of the said works and for the purchase of lands and to impose assessments and make charges for such purposes :

And whereas estimates have been prepared by the Town Council for the construction and completion of the sewers and sewage purification works authorised by this Act and for the acquisition of lands for the purposes thereof as follows :—

	£
Purchase of lands and servitudes - - -	4,000
Main sewers - - - - -	9,000
Sewage purification works and road of access and contingencies - - - - -	33,500

And whereas the said works authorised by this Act and the main sewers already constructed are permanent works it is expedient that the cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines and levels of the sewers and other works authorised by this Act to be constructed and the lands to be taken for the purposes thereof and plans showing the lands to be acquired or used for the purposes of sewage purification and also a book of reference

containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken or used for the said purposes or under the powers of this Act were duly deposited in the offices at Glasgow and Hamilton respectively of the principal sheriff clerk of the county of Lanark and are hereinafter respectively referred to as the deposited plans sections and book of reference : A.D. 1914.

And whereas it is expedient that the further powers in this Act contained should be conferred on the Town Council :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

I.—PRELIMINARY.

1. This Act may be cited for all purposes as the Motherwell Water and Sewage Purification Act 1914. Short title.

2. This Act shall (except as otherwise in this Act provided) commence and have effect on and from the date of the passing of this Act which date is hereinafter referred to as “the commencement of this Act.” Commencement of Act.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings and the following words and expressions shall have the meanings hereby respectively assigned to them namely :— Interpretation.

“The burgh” means the burgh of Motherwell within the limits and boundaries thereof existing at the commencement of this Act ;

“The Town Council” means the provost magistrates and councillors of the burgh ;

“County” means the county of Lanark ;

[Ch. lxxx.] *Motherwell Water and Sewage* [4 & 5 GEO. 5.]
Purification Act, 1914.

A.D. 1914.

- “Middle Ward” means the Middle Ward District of the county;
- “The county council” means the county council of the county;
- “The district committee” means the Middle Ward District Committee of the county council;
- “The sheriff” means the sheriff of the county or any of his substitutes;
- “The Burgh Police Acts” means the Burgh Police (Scotland) Acts 1892 to 1911;
- “The Public Health Acts” means the Public Health (Scotland) Act 1897 and any Acts amending or extending the same;
- “The Act of 1900” means the Motherwell Water (Additional Supply) Act 1900;
- “The Act of 1908” means the Motherwell Burgh Extension and Sewage Purification Act 1908;
- “Valuation roll” or “valuation rolls” means the valuation rolls for the county of Lanark and the burgh respectively made up in terms of the Lands Valuation (Scotland) Act 1854 and any Act amending the same;
- “Lands and premises” shall have the meaning assigned to the expression in the Burgh Police (Scotland) Act 1892;
- “Sewer” or “sewers” means sewer or sewers of the Town Council.

Incorporation of Acts.

4. The following Acts and parts of Acts (so far as the same respectively are applicable and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:—

The Lands Clauses Acts;

The Waterworks Clauses Act 1847 with the exceptions mentioned in the Act of 1900; and

The Waterworks Clauses Act 1863;

The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference

therewith and in construing the said clauses and provisions A.D. 1914.
 "the company" means the Town Council "the railway"
 means the works authorised by this Act "the centre of
 the railway" means any part of those works and "the
 special Act" means this Act.

II.—WATER.

5.—(1) The limits for the compulsory supply of water and the levying of water rates assessments and charges by the Town Council shall for the purposes of the Act of 1900 and the Act of 1908 as amended by this Act and this Act from and after the term of Whitsunday one thousand nine hundred and fourteen be the burgh and which limits are in this Act referred to as "the limits of compulsory supply." Extension of limits of compulsory water supply.

(2) The county council and the district committee or either of them shall not subject to the provisions hereinafter in this section contained from and after the term of Whitsunday one thousand nine hundred and fourteen supply water or levy water rates assessments or charges within any part of the limits of compulsory supply and section 24 of the Act of 1908 and any other Act or Order relating to the county council or the district committee so far as the same authorise such supply or the levying of water rates assessments and charges within the said limits or any part thereof are hereby repealed as from the said term of Whitsunday one thousand nine hundred and fourteen.

(3) The district committee shall notwithstanding that the powers of the Town Council for water supply within the districts annexed by the Act of 1908 are by this Act provided to commence and have effect from the term of Whitsunday one thousand nine hundred and fourteen continue to supply such districts between the said term of Whitsunday and the commencement of this Act and during such further period not exceeding six months as may be required by the Town Council to connect and lay on the water supply of the Town Council to such districts The obligation of the district committee to supply water under this subsection shall cease as at the date of a written notice from the Town Council to the district committee.

6.—(1) The Town Council shall within three months after the commencement of this Act pay to the county council as for themselves and for and on behalf of the district committee Compensation for cesser of water powers

[Ch. lxxx.] *Motherwell Water and Sewage* [4 & 5 GEO. 5.]
Purification Act, 1914.

A.D. 1914.
—
of county
council and
district com-
mittee.

the sum of thirty-seven thousand five hundred pounds sterling with interest thereon at the rate of four per centum per annum from said date until the date of actual payment which sum shall subject as hereinafter provided be accepted by the county council and district committee as full compensation for the cesser under this Act of the powers and rights of the county council and district committee in regard to the water supply of the districts annexed to the burgh by the Act of 1908 and also in full satisfaction of all claims competent to the said county council and district committee in respect of financial adjustments consequent upon the extension of the burgh effected by the said last-mentioned Act.

(2) In consideration of the foregoing payment the whole mains pipes and apparatus of the district committee within the districts annexed to the burgh by the Act of 1908 (other than throughgoing mains necessary for the supply of other parts of the area of supply of the district committee) shall at the commencement of this Act belong to and be vested in the Town Council Provided that the Town Council may if they think fit by written notice of such intention to the county council and district committee acquire such throughgoing mains so far as within the districts aforesaid on payment to the county council for and on behalf of the district committee of the cost of any mains necessary to be constructed in substitution therefor as the same shall failing agreement be determined by an arbiter mutually chosen or in the event of difference to be nominated by the sheriff and on the payment of such sum as may be so agreed on or ascertained such throughgoing mains so acquired shall belong to and be vested in the Town Council.

(3) The said sum of thirty-seven thousand five hundred pounds sterling shall be applied by the county council in or towards the capital cost of the Middle Ward water undertaking of the district committee and in or towards satisfaction of the debt or capital expenditure and other obligations of the county council applicable to the districts annexed to the burgh by the Act of 1908.

As to levy-
ing water
rates and as-
sessments by
Town Coun-
cil.

7.—(1) Notwithstanding the date of the commencement of this Act the Town Council shall subject to the provisions of this Act levy within the districts annexed to the burgh by the Act of 1908 the water rates assessments and charges imposed on the remainder of the burgh as the same are amended by

this Act for the year from Whitsunday one thousand nine hundred and fourteen to Whitsunday one thousand nine hundred and fifteen and may at the commencement of this Act or as soon after as conveniently may be issue such notices and adopt such proceedings as may be necessary with the view of the levying and recovery of such rates assessments and charges within the said districts annexed as aforesaid. A.D. 1914.

(2) In consideration of the water rates assessments and charges being levied by the Town Council within the said districts annexed by the Act of 1908 during the period between Whitsunday one thousand nine hundred and fourteen and the commencement of this Act the Town Council shall pay over to the county council a proportion of the water rates assessments and charges corresponding to the period from Whitsunday one thousand nine hundred and fourteen to the commencement of this Act and to such further period (if any) as provided in subsection (3) of section 5 of this Act which might have been imposed by the county council within the said districts annexed by the Act of 1908 for the year from Whitsunday one thousand nine hundred and fourteen had this Act not been passed.

8. From and after the commencement and subject to the provisions of this Act the water rates and assessments authorised by the Act of 1900 and this Act to be levied by the Town Council within the burgh (other than water rates and assessments on underground workings for minerals and lands buildings and works occupied or used in connection therewith) shall as regards the districts annexed to the burgh by the Act of 1908 for a period of nine years from Whitsunday one thousand nine hundred and fourteen be either the same cumulo water rates and assessments per pound as are levied in each year during the said period by the county council within the Middle Ward or the water rates and assessments as are levied in each year during the said period by the Town Council within the burgh whichever shall be the less Provided that for the purposes of the said water rates and assessments the annual value of electric power stations and substations or electric supply works and underground or other pipes mains or cables of any electric undertaking shall be held to be one-fourth of the annual value thereof entered in the valuation roll. As to water assessments.

9. The water rates and assessments to be imposed and levied by the Town Council howsoever authorised on the owners Water as-
essments on
minerals.

A.D. 1914. — and occupiers of underground workings for minerals within the districts annexed to the burgh by the Act of 1908 and of all lands buildings and works occupied or used in connection therewith shall be either the cumulo sums leviab^{le} as water rates and assessments on similar subjects in each year by the county council within the Middle Ward or the cumulo sums levied as water rates and assessments on the like subjects in each year by the Town Council within the burgh whichever shall make the sum leviab^{le} upon the person assessed the less Provided always that for the purposes of this section the said water rates and assessments to be imposed and levied by the Town Council shall be levied as follows namely the first threepence of said rates and assessments upon an annual value equal to the annual value entered in the valuation roll and the remainder of said rates and assessments upon an annual value equal to seven-fortieths of the annual value so entered.

III.—SEWAGE.

Power to
execute
works.

10. The Town Council may subject to the provisions of this Act make and maintain in the lines and according to the levels shown on the deposited plans and sections the sewers and the other works hereinafter described or some one or more of them or some part or parts thereof together with all necessary drains and storm overflows outfalls junctions syphons culverts manholes walls embankments pumping stations works and conveniences connected therewith and may enter upon take appropriate hold use and apply such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for these purposes The works referred to are—

- (1) A sewer (Work No. 1) situated wholly in the parish of Dalziel and county of Lanark commencing by a junction with the existing sewer at the junction of Globe Street and Glen Street continuing generally in a northerly westerly and north-westerly direction and terminating in the enclosure numbered 549 on the Ordnance Survey map (1-2500 scale) marked edition of 1912:
- (2) A sewer (Work No. 2) situated wholly in the parish of Dalziel and county of Lanark commencing by a junction with the existing sewer on Gilly's Burn at a point five yards or thereby north-east of the point

where a continuation of the line forming the north-east boundary of enclosure numbered 532 on the Ordnance Survey map (1-2500 scale) marked edition of 1912 intersects the line of the said Gilly's Burn continuing generally in a north-easterly direction and terminating in the enclosure numbered 549 on the said Ordnance map: A.D. 1914.

- (3) A road of access (Work No. 3) situated wholly in the parish of Dalziel and county of Lanark commencing at the junction of Caledonian Street with the private road numbered 505 on the Ordnance Survey map (1-2500 scale) marked edition of 1912 thence in a north-easterly direction along the said private road and continuing generally in a north-easterly easterly north-easterly and north-westerly direction through the enclosures numbered 537 538 and 547 on the said Ordnance map and terminating at a point in the south-western boundary fence of the enclosure numbered 549 on the said map eighty-eight yards or thereby measured north-westward from the south-western corner of the said enclosure numbered 549:
- (4) A sewer (Work No. 4) situated wholly in the parish of Dalziel and county of Lanark commencing by a junction with the existing sewer one hundred and sixty-five yards or thereby west from the west side of Kethers Bridge continuing generally in a north-westerly direction and terminating in the enclosure numbered 443 on the Ordnance Survey map (1-2500 scale) marked edition of 1912:
- (5) A sewer (Work No. 5) situated wholly in the parish of Dalziel and county of Lanark commencing by a junction with the existing sewer in Ladywell Road at a point ten yards or thereby north-east of the point where the burgh boundary of the burgh of Motherwell intersects the said road continuing generally in a south-westerly and north-westerly direction and terminating by a junction with Work No. 6 at a point sixty-one yards or thereby measured in a north-easterly direction from the north-west corner of the enclosure numbered 413 on the Ordnance Survey map (1-2500 scale) marked edition of 1912:

A.D. 1914.
—

- (6) A sewer (Work No. 6) situated wholly in the parish of Dalziel and county of Lanark commencing by a junction with the existing sewer at a point one hundred and seven yards or thereby west of the west side of the bridge carrying the roadway of Muir Street over the line of the Caledonian Railway from Motherwell to Buchanan Street Glasgow and the north continuing generally in a south-westerly direction and terminating in the enclosure numbered 443 on the Ordnance Survey map (1-2500 scale) marked edition of 1912.

Errors and omissions in plans &c. and book of reference may be corrected by sheriff.

11. If there be any omission mis-statement or erroneous description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Town Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that the omission mis-statement or erroneous description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the county and kept by such principal sheriff clerk with the other documents to which the same relates and thereupon the deposited plans or book of reference (as the case requires) shall be deemed to be corrected according to the certificate and the Town Council may enter on take hold and use those lands and execute the works in accordance with such certificate.

Limits of lateral and vertical deviation.

12. Subject to the provisions of this Act the Town Council may in the construction of the aforesaid works deviate from the lines thereof as shown or referred to on the deposited plans to any extent not exceeding the limits of deviation defined on the said plans and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet upwards and to any extent downwards.

Protection of lands of Braidhurst.

13. For the protection of the proprietors of the estate of Braidhurst and Milton and their successors (in this section referred to as "the proprietors") the following provisions

shall unless otherwise agreed in writing have effect (that is to say):— A.D. 1914.

- (1) The road of access (Work No. 3) shall run so that the south-east and east boundary thereof shall coincide with the north-west boundary of plantation numbered 547 on the Ordnance Survey map (1-2500 scale) edition 1912 up to the point where it is necessary for the said road to cross plantation numbered 547 on said map in order to reach field numbered 549 on said map:
- (2) The said road shall be not less than twenty feet in breadth and shall be fenced off by and at the expense of the Town Council from the adjoining land by a fence consisting of posts and five wires of a substantial character provided with such number of wooden or iron gates as may be necessary for giving access to the fields plantations or other lands adjoining the road and the Town Council shall at all times keep the said roadway fences and gates in good order and condition:
- (3) The said road shall not except so far as the proprietors may otherwise decide be open to the use of the public and shall be closed with an adequate gate or gates placed in such positions as the proprietors may determine which gates shall be locked and the keys kept only by the Town Council and the proprietors and the other persons to whom the proprietors may grant the use thereof The proprietors and their tenants and other persons having the permission of the proprietors shall at all times have the right to use the said road and the Town Council shall use their best endeavours to prevent the use of the said road by other persons and to prevent trespass on the adjoining fields and plantations of the proprietors:
- (4) In the event of the proprietors feuing or selling the land adjoining any part of the said road for building purposes or using the same in any other way for building purposes they may open the said road for public use to such extent as they may consider necessary and may require the Town Council to join

A.D. 1914.

in reforming the portion of the road so opened so as to make the same suitable for being taken over as a public street and the cost thereof shall be borne by the Town Council as to the breadth of the aforesaid twenty feet and by the proprietors or their feuars or disponees as to the remaining breadth thereof and in the event of the said portion of road being then wholly or partially within the burgh the same shall so far as within the burgh if the proprietors so require be taken over by the Town Council as a public street But in the event of the said space of twenty feet opposite any ground feued sold or otherwise used for building purposes being damaged by carting materials for such building previous to the same being taken over by the Town Council as a public street the proprietors shall make such contribution towards restoring the same as failing agreement shall be fixed by the arbiter after-mentioned :

- (5) Any sewage purification works to be constructed under this Act shall be conducted so as not to cause any nuisance to the proprietors or their tenants or feuars and any furnaces flues and chimney stalks required in connection therewith shall be so constructed as to consume their own smoke and prevent the emission of black smoke and the Town Council shall be bound to compensate the proprietors and their tenants for any injury caused to trees or crops or to the amenity of any dwelling house by the use of the said works :
- (6) The Town Council shall fence off any land taken by them for the said sewage purification works with fences of a sufficient and substantial character and maintain the said fences in all time coming :
- (7) The Town Council shall if called upon by the proprietors plant and maintain on the ground to be acquired by them for their sewage purification works a belt of trees round the said works sufficient to conceal the same from view :
- (8) In the event of any difference arising between the Town Council and the proprietors as to the

sufficiency of the fences gates or trees above provided for or as to the work to be executed in reforming the said road or as to whether any nuisance has been caused or any injury caused to trees or crops or to the amenity of any dwelling house by use of the said works the same shall be referred to the decision of an arbiter to be mutually chosen and failing agreement to be appointed by the sheriff. A.D. 1914.

14. For the protection of the county council and the district committee who for their respective rights jurisdictions and interests under and in virtue of the Local Government (Scotland) Acts the Roads and Bridges (Scotland) Acts the Public Health (Scotland) Acts and the Lanarkshire (Middle Ward District) Water Acts are in this section included under the expression "the county authorities" the following provisions (unless otherwise agreed upon between the Town Council and the county authorities) shall apply and have effect (that is to say):—

(1) The Town Council shall if called upon by the county authorities arrange to take into the sewers authorised by this Act provided the said sewers are of sufficient capacity and deal with and dispose of at the sewage works of the Town Council the sewage from all premises in the county areas through which the said sewers pass so far as the same by reason of the configuration of the ground naturally or conveniently drain towards the said sewers the county authorities in respect thereof paying to the Town Council the drainage assessments in respect of the premises within the county so drained as these may be levied within the burgh from time to time Provided that if the Town Council should incur any extraordinary expense in connection with internal sewers within the burgh then the county authorities shall not be called upon to bear in the assessments before referred to any part thereof Any dispute between the county authorities and the Town Council with respect to what may be termed extraordinary expense shall be determined as hereinafter provided for:

(2) All sewers or other works constructed in public highways under the control of the county authorities

A.D. 1914.

shall be constructed by the Town Council in such positions in the highways as the county authorities may determine and so far as any sewer or other works are not shown on the deposited plans they shall be constructed on lines and at levels to be approved of by the county authorities before work is commenced. The Town Council shall break up or interfere with the surface of the highways and obstruct the traffic thereon as little as may be and shall complete their operations and restore the surface to the satisfaction of the county authorities with all reasonable despatch:

- (3) No sewer gas or water pipe or other work or property of the county authorities shall be in any way altered or interfered with except in accordance with plans sections and specifications previously submitted to and approved of by the county authorities:
- (4) All works carried out on public highways or which interfere with or affect any of the property or interests of the county authorities shall be carried out under the superintendence of the county authorities:
- (5) All extra expense which can be shown to be due to the construction of any works authorised by this Act which may be incurred by the county authorities in carrying out any powers vested in them by any Act of Parliament already in existence or any powers which may be vested in them by any future Act of Parliament shall be repaid to the county authorities by the Town Council:
- (6) If any difference shall at any time arise between the Town Council and the county authorities with respect to any of the matters referred to in this section such difference shall be referred to and determined by an arbiter to be appointed by the sheriff on the application of either the Town Council or the county authorities.

For protection of Caledonian Railway Company.

15. The following provisions for the protection of the Caledonian Railway Company (hereinafter in this section called "the company") shall unless otherwise agreed between the

company and the Town Council apply and have effect (that is to say) :— A.D. 1914.

- (1) Before commencing any works or operations under the powers conferred on them by this Act in or over about or affecting any property or works belonging to or maintainable by the company the Town Council shall submit to the company plans sections working drawings and specifications showing the manner in which such works or operations are to be carried out for approval of the company which approval shall be deemed to have been given unless the company signify their disapproval within twenty-one days after submission of the said plans sections working drawings and specifications All the said works and operations shall be constructed carried on and completed in conformity only with the plans sections working drawings and specifications so approved at the sole risk and cost of the Town Council and at the sight and to the reasonable satisfaction of the company and all such works shall be maintained repaired or renewed by the Town Council in all time coming at their sole cost at the sight and to the satisfaction of the company Provided that in the event of the Town Council reconstructing altering or renewing any of the said works they shall submit plans and working drawings of such reconstruction alteration or renewal to the company for their approval and such reconstruction alteration or renewal shall be carried out only in conformity with the plans and drawings so approved all at the sole risk of the Town Council :
- (2) The Town Council shall not without the previous consent in writing of the company enter upon or interfere with any property works or other subjects belonging to or maintainable by the company further or otherwise than may be necessary for constructing and maintaining or effecting repairs to any of the said works and shall not take or acquire any lands or property of the company for the purposes of the said works :
- (3) The Town Council shall pay to and reimburse the company in all reasonable costs charges and expenses

A.D. 1914.

which they may incur in connection with the approval of any plans sections working drawings and specifications which may be submitted to them for approval as aforesaid or the construction or subsequent maintenance use alteration replacing or repair of the works by this Act authorised together with the cost of superintendence and of all reasonable extra precautions for the safety and working of their traffic or protection of their property on account of the execution maintenance use alteration replacing or repair of the said works :

- (4) All the said works and operations of the Town Council including the maintenance and any alteration replacing or repair thereof shall in so far as the same affect the property works or other subjects belonging to or maintainable by the company be constructed executed and completed by the Town Council at their sole risk and cost and so as not to injure alter or interfere with or endanger the structure or stability of any of the said property works or other subjects in or about which the said works may be constructed and the Town Council shall if necessary strengthen or support such property works or other subjects and should any danger injury interruption impediment or interference to or with the passage or conduct of traffic on any railway of the company be caused by or be in any way owing to the works or operations of the Town Council or the failure of or defect in the said works of the Town Council or be reasonably apprehended in connection therewith the Town Council shall free of all expense to the company execute and do all such works as may be necessary to restore remove or prevent such injury danger interruption or impediment as the case may be or the company in their option and for any of these purposes may enter upon the works or property of the Town Council and execute and do all such works and things as may be necessary to restore remove or prevent such injury danger interruption or impediment and the Town Council shall on demand repay to the company all reasonable costs and expenses incurred by them in

connection therewith Provided further that the Town Council shall pay all costs and expenses incurred by and shall make reasonable compensation to the company for all loss or damage caused by such works and operations interruption impediment or interference to or with the said property works or other subjects: A.D. 1914.

- (5) The Town Council shall also indemnify the company for all damages or compensation which may be recovered from them by reason of such interruption impediment or interference or by reason of any accident so far as such interruption impediment interference or accident shall have been occasioned by or through the acts or default of the Town Council or of those for whom they are responsible :
- (6) Nothing in this Act contained or which may be done in pursuance thereof shall prevent the company from maintaining repairing renewing deviating widening enlarging altering or reconstructing the property works and other subjects belonging to or maintainable by them without incurring any liability to the Town Council or to any person using the said works of the Town Council for any loss injury damages or expenses which may arise from such maintenance repair renewal deviation widening enlarging alteration or reconstruction unless the same shall arise from some neglect or default of the company or their agents workmen or servants in the execution of such maintenance repair renewal deviation widening enlarging alteration or reconstruction Provided that in the event of the company exercising any of such powers they shall do so in such manner as to cause as little damage and interference as practicable to and with the said works of the Town Council and shall give (except in case of emergency in which case notice shall be given as soon as possible after the work has been commenced) fourteen days' previous notice in writing to the Town Council before commencing any such operations as may affect any of the said works of the Town Council Provided that any extra expense which the company may incur in such reconstruction maintenance repair renewal

A.D. 1914.

deviation widening enlarging alteration or reconstruction by reason of the existence of the said works of the Town Council shall be paid by the Town Council :

- (7) Any question or difference between the Town Council and the company arising under this section shall be determined by an arbiter to be agreed upon between the Town Council and the company or failing agreement to be nominated by the Board of Trade on the application of either party.

Power to
alter roads
&c. temporarily.

16. For the purposes and during the execution of the several works which the Town Council are by this Act authorised to make and in maintaining the same and subject to the provisions of this Act the Town Council may temporarily break up or cross over or under alter or stop up any streets roads highways lanes paths bridges railways sidings passages sewers drains watercourses gas pipes and water pipes and electric mains and telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing a proper temporary substitute before interrupting the traffic on any such street road highway lane path bridge railway siding or passage or the flow of water gas sewage or electricity in any such sewer drain watercourse pipe or apparatus and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall extend to authorise any interference with electric telegraphic or telephonic apparatus or other property of His Majesty's Postmaster-General Provided also that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

Persons
under dis-
ability may
grant servi-
tudes &c.

17. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Town Council any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes

of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. A.D. 1914.

18. The Town Council may acquire compulsorily or by agreement and may hold use and apply the lands described in the schedule to this Act and shown on the deposited plans and described in the deposited book of reference or some part or parts thereof and may construct thereon and thereafter maintain use and manage all necessary and proper erections appliances tanks reservoirs basins pumping and other engines mains buildings machinery apparatus and works for pumping receiving conveying storing filtering precipitating disinfecting using distributing and disposing and carrying out bacteriological or chemical or other treatment of the whole or any portion of the contents of the sewers and may subject to the provisions of the Rivers Pollution Prevention Acts 1876 and 1893 discharge or permit to flow into the River Clyde and the River Calder respectively any effluent or other waters passing over or through or discharged from the sewage works of the Town Council. Lands for sewage purification.

19.—(1) The Town Council may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts. Town Council may acquire servitudes only in certain cases.

(2) As regards any lands in respect of which the Town Council have acquired a servitude right or privilege only under the provisions of this section the Town Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Town Council to acquire by compulsion any

A.D. 1914. — such servitudes in any case in which the owner in his particulars of claim shall require the Town Council to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision.

Lands for extraordinary purposes.

20. In addition to the lands authorised to be taken as aforesaid the Town Council may by agreement purchase any lands not exceeding five acres for the purpose of making depots and other buildings and conveniences in connection with the works by this Act authorised. Provided that the Town Council shall not create or permit a nuisance on such last-mentioned lands.

Limiting time for exercise of compulsory powers of purchase.

21. The powers of the Town Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the commencement of this Act.

Period for completion of works.

22. If the sewers authorised by this Act are not completed within six years from the commencement of this Act then on the expiration of that period the powers by this Act granted to the Town Council for making and completing the same shall cease except as to so much thereof as is then completed.

Existing sewers and drains to be connected with works.

23. The Town Council may make and maintain all such sewers drains or pipes and appurtenances as may be necessary for connecting any existing sewers outfalls of sewage or drains with the works by this Act authorised or any of them and for such purpose may remove replace diminish enlarge or alter any existing sewer outfalls of sewage or drains of the Town Council and may vary the direction and levels of the same.

Application of 10 & 11 Vict. c. 17 with respect to mines.

24.—(1) The provisions of the Waterworks Clauses Act 1847 sections eighteen to twenty-seven (both inclusive) with respect to mines shall in relation to the sewers drains pipes outfalls erections tanks reservoirs basins pumping and other engines mains buildings machinery apparatus and other works and appliances authorised by this Part of this Act (hereinafter in this section referred to as “the said sewage works”) be deemed to be incorporated with this Act with the following modifications (that is to say) :—

(A) For the purposes of such incorporation the said provisions of the Waterworks Clauses Act 1847 shall be construed

as if the expression "the undertakers" referred to the Town Council and as if the expression "the special Act" referred to this Act and as if expressions relating to pipes conduits or other works referred to the said sewage works: A.D. 1914.
—

- (B) The Town Council by or with any notice under the Waterworks Clauses Act 1847 of willingness to treat for or make compensation or of intention to prevent or interfere with the working of any mines may specify and define the nature and extent of support (vertical or lateral) which they require to be left and any such notice may extend to minerals beyond the distance of forty yards mentioned in the said Act or to such less distance as the Town Council think fit:
- (c) The amount of any compensation in respect of support for the said sewage works payable by the Town Council under the provisions of the Waterworks Clauses Act 1847 as incorporated with this Act together with the costs of and incident to settling the same by arbitration or otherwise shall be paid charged and borne in the same manner and subject to the same powers and provisions as to borrowing and otherwise as are provided by this Act with respect to the expenses of the construction and maintenance of the said sewage works.

(2) The provisions of this section shall apply whether the land on in over or under which any of the said sewage works authorised by this Act is situate is or is not vested in or occupied by the Town Council or other local authority and is or is not wholly or partially dedicated to the public as a street highway or public place.

(3) Except as in this section provided the Town Council shall not by reason of anything contained in this Act be deemed to have acquired or to be entitled to or to be bound to acquire or make compensation for any right of support (lateral or vertical) as against any person owning or working or being lessee or occupier of or entitled to work or otherwise interested in any mine and nothing in this Act shall be deemed to have subjected or to subject any such person to any liability to the Town

[Ch. lxxx.] *Motherwell Water and Sewage* [4 & 5 GEO. 5.]
Purification Act, 1914.

A.D. 1914. Council in respect of damage to any of the said sewage works caused by or consequent upon the working of any mines in the usual manner.

IV.—FINANCE.

Sewer assessment.

25. The purposes of the sewers and sewage purification works and drainage and subsidiary works and the purchase of lands and construction of works authorised by this Act shall be held to be purposes within the meaning of the Burgh Police Acts with respect to which the sewer assessment under those Acts may be imposed by the Town Council within the burgh.

Borrowing and assessing power.

26. The Town Council in addition to any other powers of borrowing which they now have or may obtain may for the purpose of the payment to the county council under the provisions of the section of this Act whereof the marginal note is "Compensation for cesser of water powers of county council and district committee" borrow on mortgage or otherwise such money as may be necessary under and on the security of any one or more of the assessments leviable by the Town Council within the burgh as the Town Council may determine and the Town Council may assign so much or such part as may be required of such assessments as security for the money which may be so borrowed under the provisions of this section.

Power to borrow.

27. The Town Council may in accordance with the provisions of the Burgh Police Acts and subject to the provisions of this Act in addition to any statutory powers they now possess from time to time borrow on mortgage or otherwise for and in connection with the sewerage and sewage purification purposes of this Act the sums following:—

- (1) For the purchase of lands and servitudes four thousand pounds:
- (2) For main sewers nine thousand pounds:
- (3) For sewage purification works and road of access and contingencies thirty-three thousand five hundred pounds:
- (4) For the repayment of the costs charges and expenses of and incidental to the obtaining and passing of this Act as hereinafter provided the sum requisite for the said purpose:

And may make and grant mortgages or other securities in the manner authorised by the Burgh Police Acts of the sewer assessment authorised by those Acts in security of the money so borrowed for sewerage purposes and interest thereon. A.D. 1914.

28. If after having borrowed the sums of money by this Act authorised or any part thereof the Town Council shall pay off the same or any part thereof otherwise than by means of (1) the sinking fund hereinafter mentioned or (2) by instalments or (3) moneys derived from the sale of land or (4) any capital moneys (not being moneys borrowed) properly applicable to the purposes of such repayment it shall be lawful for the Town Council again to borrow the amount so paid off upon the same securities as those upon which the moneys so paid off were secured and so from time to time Provided that all moneys so re-borrowed by the Town Council shall be repaid within the period prescribed for the repayment of the money in lieu of which such re-borrowing has been made. Town Council may re-borrow.

29. The Town Council may accept and take from any bank or banking company credit on a cash account to be opened and kept with such bank or banking company in the name of the Town Council according to the usage of bankers in Scotland to the extent of the aggregate amount which the Town Council are at the time authorised to borrow under this Act or any part thereof and may make and grant mortgages and assignments of the sewer assessment authorised and leviable under the authority of the Burgh Police Acts and this Act in security of the payment of the amount of such credit or of the sums advanced from time to time on such cash account with interest thereon Provided always that the whole sums due and owing by the Town Council on such cash account and borrowed by them on mortgage shall never when taken together exceed the aggregate amount of the sum by this Act authorised to be borrowed and not repaid by instalments or by sinking fund. Town Council may borrow on cash account.

30. Nothing in this Act contained shall prejudice or affect any mortgages or assignments in security granted by the Town Council previous to the commencement of this Act and such mortgages and assignments shall be as valid and effectual in all respects as if this Act had not been passed and shall attach to and form burdens upon the rates duties assessments and charges imposed and levied by the Town Council in priority to any money which may be raised under this Act. Saving existing securities.

A.D. 1914.

Mode of re-
payment of
borrowed
money.

31. The Town Council shall pay off all money borrowed by them for capital expenditure under this Act either by means of a sinking fund formed under the provisions of this Act or by equal yearly or half-yearly instalments of principal or of principal and interest combined or partly by one of these methods and partly by another or others of them.

Repayment
of borrowed
money.

32. The Town Council shall pay off all money borrowed by them under this Act within the periods following (hereinafter referred to as "the prescribed period") (that is to say):—

As to money borrowed for the purposes of the section of this Act of which the marginal note is "Compensation for cesser of water powers of county council and district committee" within fifty years from the date or dates of borrowing the same:

As to money borrowed for constructing the main sewers road of access and the sewerage and sewage purification works and contingencies and for the purchase of lands and other property and rights authorised by this Act within thirty years from the date or dates of borrowing the same:

As to money borrowed for payment of the costs of this Act within five years from the commencement of this Act.

Sinking
fund.

33.—(1) If the Town Council determine to repay by means of a sinking fund any money borrowed for the purposes of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the money for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called "a non-accumulating sinking fund"; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the money for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called "an accumulating sinking fund."

(2) Every sum paid to a sinking fund and in case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the Town Council the Town Council being at liberty from time to time to vary and transpose such investments. A.D. 1914.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Town Council towards the equal annual payments to the fund.

(4) The Town Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Town Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Town Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Town Council in addition to the payments provided for by this Act.

(7) If it appears to the Secretary for Scotland or to the Town Council at any time that the amount in the sinking fund

A.D. 1914. — with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed it shall be the duty of the Town Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the Town Council desire to accelerate the repayment of any loan they may increase the amount payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Town Council be more than sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Town Council may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Town Council be sufficient to repay the loan in respect of which it is formed within the prescribed period the Town Council may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the money for the repayment of which it was formed shall be applied to such purpose as the Town Council may determine.

(12) The period at which the payments into the sinking fund shall commence shall be one year after the date or dates of borrowing.

Annual re-
turn to Sec-
retary for
Scotland

34. The chamberlain of the burgh shall within four months after the expiration of each year during which any sum is by this Act required to be paid as an annual instalment

or to be set apart for a sinking fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so paid or set apart in respect of that year and the description of the securities upon which any investment has been made and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return such chamberlain so making default shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable. If it appear to the Secretary for Scotland by any such return or otherwise that the Town Council have failed to pay any instalment or to set apart the sum required by this Act to be set apart for the sinking fund or have applied any portion of the money set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Act the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be paid or set apart and invested as part of the sinking fund and such Act shall be enforceable by decree of either division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

A.D. 1914.
 —
 with respect
 to sinking
 fund.

35. Any person lending or paying money to the Town Council shall not be bound to inquire as to the observance by the Town Council of any provisions of this Act or of any Act incorporated herewith or to see to the application or be answerable for any loss misapplication or non-application of such money or any part thereof.

Protection of
 lenders from
 inquiry.

36. The mortgagees of the Town Council may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than five thousand pounds in the whole.

Appoint-
 ment of a
 judicial
 factor.

[Ch. lxxx.] *Motherwell Water and Sewage* [4 & 5 GEO. 5.]
Purification Act, 1914.

A.D. 1914.
—
Application
of penalties.

37. All penalties and forfeitures exigible under this Act shall (except any penalties payable by the Town Council) be payable to the Town Council and shall when recovered be applied by them to the purposes of this Act.

Costs of
Act.

38. All costs charges and expenses of and incidental to the preparing for and obtaining this Act or otherwise in relation thereto shall be paid by the Town Council out of any moneys to be borrowed by them under this Act or out of any rates or assessments leviable within the burgh.

The **SCHEDULE** referred to in the foregoing Act.

LANDS FOR SEWAGE PURIFICATION.

(1) A piece of land in the parish of Dalziel and county of Lanark being the enclosures numbered 548 and 549 on the Ordnance Survey map of the said parish (1-2500 scale) marked edition of 1912.

(2) A piece of land in the parish of Dalziel and county of Lanark being the enclosure numbered 444 and parts of the enclosures numbered 443 and 445 on the Ordnance Survey map of the said parish (1-2500 scale) marked edition of 1912 and lying within the following boundaries namely commencing at the north-west corner of the said enclosure numbered 444 thence south-westward and generally southward along the boundary of the said enclosure numbered 444 for a distance of 387 yards or thereby thence southward for a distance of 67 yards or thereby in the said enclosure numbered 445 thence eastwards for a distance of 143 yards or thereby in the said enclosures numbered 445 and 443 thence northwards for a distance of 262 yards or thereby in the said enclosure numbered 443 to join the north-east boundary of the said enclosure numbered 444 thence along the said north-east boundary of the said enclosure numbered 444 for a distance of 207 yards or thereby to the point of commencement.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.